

		a \$60 motion fee, and \$1,840 in associated costs). Petitioner is directed to give notice.
6	Coxe – Trust (2024-01371243)	Motion for Fees The Motion of Former Counsel for Approval and Payment of Attorney’s Fees and Costs from Trust Assets (ROA 191) is DENIED. Moving party The Fox Firm asks the court to approve and direct payment of attorney fees and costs from the Frank Sidney Coxe Trust (Trust) for work allegedly incurred in connection with administration of the Trust including representation of Sophie Vilks-Coxe, former trustee of the Trust, in this proceeding. The motion is made pursuant to Probate Code sections 15684, 16240, 16247, 17200, and 17206. However, none of those sections give this court the power to award interim fees directly to the moving party. At most, the sections give the court power to award attorney fees if requested by a trustee. Section 15684 states: “a trustee is entitled to repayment out of the trust property for . . . [e]xpenditures that were properly incurred in the administration of the trust.” (Emphasis added.)

	Section 16240 states: “the trustee has the power to insure the property of the trust against damage or loss and to insure the trustee against liability with respect to third persons.” (Emphasis added.) Section 16247 gives the trustee power to hire attorneys. Section 17200 gives a trustee or a beneficiary the power to petition a court concerning the internal affairs of a trust. Section 17206 gives a court the discretion to “make any orders and take any other action necessary or proper to dispose of the matters presented by the petition.” (Emphasis added.) No petition in this proceeding seeks fees for moving party. None of the cited authorities give this court jurisdiction to award moving party fees pursuant to the motion. Even if the court had jurisdiction to consider this motion, it would be denied. “[A] probate court has the discretion to award interim fees in some circumstances.” (<i>People ex rel. Harris v. Shine</i> (2017) 16 Cal.App.5th 524, 539.) ““The underlying principle which guides the court in allowing costs and attorneys’ fees incidental to litigation out of the trust estate is that such litigation is a
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	benefit and a service to the trust,” and not for the personal benefit of the trustee. [Citation.] Consequently, where the trust is not benefited by litigation, or did not stand to be benefited if the trustee had succeeded, there is no basis for the recovery of expenses out of the trust assets.”” (Zahnleuter, supra, 88 Cal.App.5th at Id, at p. 534.) “[T]he costs of a <i>successful</i> defense to a removal or surcharge petition are generally chargeable against the trust . . . However, a trustee is not entitled to indemnity for fees incurred in an <i>unsuccessful</i> defense of such a petition absent an additional showing that ‘the trustee subjectively believed that the expense was necessary or appropriate to carry out the purpose of the trust and that belief was objectively reasonable.’” (People ex rel. Harris v. Shine, supra, 16 Cal.App.5th at p. 535.) “A trustee is <i>not</i> entitled to reimbursement of litigation expenses from the trust estate when, as here, ‘[t]he dispute was, and continues to be, over who will enjoy the benefits and who will control the trust.’” (Zahnleuter v. Mueller, supra, 88 Cal.App.5th at p. 1307.) This proceeding is still active and there has been no determination of whether the fees incurred by the former trustee are a benefit or a service to the Trust and no evidence provided to support a claim of the same.
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		At most, moving party is a creditor of the trust and has only the rights of a creditor. (See, e.g., Prob. Code, § 18004.) The motion is DENIED. In denying the motion, the court makes no finding as to whether moving party would be entitled to fees through some other means or at some other time. Petitioner Daniel F. Coxe is ordered to give notice.
7	Sansky – Trust (2025-01487738)	NOTICE OF WITHDRAWAL FILED
8	Richley – Trust (2025-01493436)	MOTIONS TO COMPEL (2) The hearings on Petitioner Jeanine Richley’s Motion to Compel Respondent Mia Alexis’ Further Responses and Production as to Requests for Production of Documents, Set One (ROA 50) and Motion to Compel Respondent Mia Alexis’ Further Responses to Special Interrogatories, Set One (ROA 55) are continued to November 18, 2026 at 9:00 a.m. in Department CM08 to allow the moving party to satisfy the requirements of Code of Civil Procedure section 2016.040 (§ 2016.040). Pursuant to § 2016.040, “[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either <i>in person</i>, <i>by telephone</i>, or <i>by videoconference</i>, to informally resolve <i>each issue</i> presented